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ST. VRAIN VALLEY COMMUNITY WATCHDOGS

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JUN 09 1998

Division of Minerals & Geology

May 30, 1998

Mr. Daniel W. Heintz
Vice President Environmental Affairs
Southdown, Inc.
1200 Smith Street
Suite 2400 Houston, Texas 77002

Dear Mr. Heintz,

Thank you for your letter regarding the measures that Southdown Lyons is implementing to eliminate air pollution. We appreciate the fact that your company manufactures a product that benefits society, and we appreciate that the company provides a livelihood for over 90 people in the community. These facts are commendable and will never be an issue with the St. Vrain Valley Community Watchdogs. Our organization is dedicated to protecting and improving the health and environment of the people of this region, and our focus is eliminating air pollution in our community. Our only issue with Southdown is the company's air pollution that blows into our homes, and is breathed into our lungs.

We have noted a reduction in fugitive dust from the old quarry since Southdown Lyons complied with a directive from the Air Pollution Control Division to cover the baghouse dust so that it is not exposed to the wind. And, we applaud your plans to accelerate the reclamation of this site. Mr. Mossberg, Compliance Officer at Southdown, sent us a copy of the new fugitive dust control plan that was submitted to the Air Pollution Control Division, Colorado Department of Public Health and Environment. The plan is impressive on paper, but a reality check reveals shortcomings. In fact, the plan failed on May 30th, 1998.

The enclosed photograph was taken on the morning of May 30th, 1998. The plumes of air pollution that you see in the photo persisted for approximately one hour. The plumes gradually subsided by noon, and then flared up again later in the afternoon. This incident was reported to the Boulder County Health Department. Then, according to your instructions, we telephoned Southdown, but there was no answer. Mr. and Mrs. Cargill drove to the plant's administrative office hoping to discuss the situation with Mr. Lohr, Plant Manager, or Mr. Mossberg, Compliance Officer, but the office was closed. As they walked back to the parking lot, they saw the wind picking up materials that were strewn about on a paved area adjacent to the administrative office. Within

seconds these grey and black particulates had transformed into a filthy plume that rose approximately a hundred feet off the ground and then started drifting into St. Vrain Valley. Before the Cargills left, they witnessed numerous dust plumes forming--in the parking lot, from roadways, and stockpiled materials. The wind carried these particulates to the east--off your property into residential areas. We strongly protest and denounce this incident.

Mr. Heintz, in the spirit of working cooperatively with Southdown, we would like to suggest that keeping these paved areas clean of debris would have deprived the wind of the resources it needed for a plume. Watering these areas is effective in some instances, but it is a transitory housekeeping measure in this environment. As you can see in the photographs, the air pollution problem is not limited to the old quarry, but is generated by poor housekeeping in both the mine and the plant facility.

Mr. Heintz, we **do** recognize the progress that is being made to eliminate air pollution at Southdown Lyons. We **do** appreciate the professional support that we are both receiving from the governmental health authorities. We sincerely hope that you will understand why we are so **urgently** pursuing this matter.

The May issue of "Environmental Protector" list the wide range of PM-related health effects:

These effects include premature mortality and increased hospital admissions and emergency room visits, primarily in the elderly and individuals with cardiopulmonary disease; increased respiratory symptoms and disease in children and individuals with cardiopulmonary disease such as asthma; decreased lung function, particularly in children and individuals with asthma; and alterations in lung tissue, structure and respiratory tract defense mechanisms.

We have studied similar research from The American Lung Association, the Environmental Protection Agency, and other sources; and we feel that the air pollution from your plant is exposing our families and our community to grave health risks; it is causing us anxiety and stress; and it is usurping our Constitutional right to the pursuit of happiness.

Please continue working to resolve these air quality issues at your plant.

Steering Committee Members

Richard Cargill	Sida Leavenworth
Jennifer Ellen	Dr. M. W. Reynolds
Merrill Fisher	Leslie Goodwin

5976 Hygiene Road
Longmont, CO 80503
(303) 772-4267

Enclosures: photos, May 30, 1998

Courtesy Copies are provided for public awareness and for soliciting assistance in resolving this issue.

St. Vrain Valley Community Watchdogs

Vice President Al Gore

Governor Roy Romer

Senator Ben Nighthorse Campbell

Representative David Skaggs

Senator Terry Phillips

Senator Sally Hopper

Representative Bill Swenson

Representative Todd Saliman

Clarence Comer, President, Southdown, Inc.

Herb Gibson, Assistant Area Director, Department of Labor, OSHA

Director, Environmental Protection Agency

Robert Friend, District Director, Mine Safety Health Administration

Mayor of Longmont - Ms. Leona Stoecker

Mayor of Lyons - Mr. Nick Angelo

Robert Brady, Chairman, Colorado Air Quality Control Commission

Doug Lempke, Colorado Air Quality Control Commission

Robert Jorgenson, Air Pollution Control Division, Colorado Department of Public Health and Environment

David Ouimette, Boulder County Health Department

Chuck Stout, Executive Director, Boulder County Health Department

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Jeff Zayach, Boulder County Health Department - Environmental Health

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Janine Pryor, The American Lung Association

Monika Piergrossi, The Environmental Coalition

The Environmental Defense Fund

Richard Fleming, The Boulder Weekly

Katy Human, The Boulder Daily Camera

The Boulder Planet

Eric Frankowski, Daily Times-Call

Wayne Stone, Principal, Hygiene Elementary School & Parents' Association